

1.

CASE #	CASE NAME	HEARING NAME
CVCO2603413	CAVALRY SPV I, LLC AS ASSIGNEE OF CITIBANK, N.A. VS VOVOS	MOTION TO QUASH SERVICE OF SUMMONS

Tentative Ruling:

Moving party: Defendant Chrissy Vovos
Responding party: Plaintiff Cavalry SPV I, LLC

Motion filed: 6/15/2026
Opposition filed: 8/7/2026
Reply filed: None available on eCourt as of 8/17/2026

Plaintiff's proof of service reflects personal service under CCP § 415.10. The proof of service, executed by registered California process server Peter Rhima, Registration No. 6779, states that he "delivered the documents to CHRISSY VOVOS with identity confirmed by subject stating their name" and that "[t]he individual accepted service with direct delivery" on May 13, 2026, at 8:11 p.m. (Marbella III Decl. ¶ 3, Ex. 1.) It also provides a physical description: "blonde-haired white female contact 35-45 years of age, 5'4"-5'6" tall and weighing 140-160 lbs with a tattoo." (*Id.*) This return establishes a presumption of valid service. (*Am. Express Centurion Bank, supra*, 199 Cal.App.4th at 390; Evid. Code § 647.)

Defendant's declaration asserts that a "male walked into the garage where [her] 17-year-old son and his friends were and handed papers to [her] son, telling him he had 30 days to respond and walked away." (Vovos Decl. ¶ 2.) However, Defendant does not directly controvert the process server's detailed physical description of the person served. Defendant states only that her son called her "shortly after" and reported that "some scary guy came in the garage . . . and gave him some papers." (*Id.*) She offers no evidence as to her own whereabouts at 8:11 p.m. on May 13, 2026.

More significantly, Defendant's own declaration establishes that she had contemporaneous notice of the service. She states that her son "called [her] shortly after" the papers were delivered and "facetimed [her] to show [her] the documents that were handed to him." (Vovos Decl. ¶ 2.) The address where service occurred—2198 Turnberry Ln, Corona, CA 92881-7439—is also Defendant's own address as listed on her motion papers. (Pl.'s Mot. to Quash p. 1.)

Plaintiff's counsel also submitted evidence that on or about December 9, 2025, its counsel sent Defendant correspondence advising that a lawsuit was imminent to the same address, and that correspondence was not returned as undeliverable, confirming that the address was valid and that Defendant resided there. (Marbella III Decl. ¶ 4, Ex. 2.)

Based on the foregoing, Defendant has not met her burden to rebut the presumption of valid service. The process server's detailed physical description and confirmation of identity by name remain unrebutted.

In sum, Plaintiff has carried its burden of proving valid personal service under CCP §

415.10 by a preponderance of the evidence. Defendant has not presented sufficient evidence to overcome the presumption of validity afforded to the registered process server's return.

Therefore, the motion to quash service of summons is **DENIED**.

2.

CASE #	CASE NAME	HEARING NAME
CVME2513743	CAPITAL ONE, N.A. VS HOLMAN-IDOMOTO	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: There is no Proof of Service from the Plaintiff that the instant motion and other attachments, declarations have been serviced/notice to the Defendant. This hearing is continued until October 1, 2026 at 8:00 a.m., Dept. M205. Plaintiff is to give notice and file a Proof of Service with this court at least 5 days in advance of the hearing date.

3.

CASE #	CASE NAME	HEARING NAME
CVME2515887	MARINER FINANCE, LLC VS BARAHONA	MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED

Tentative Ruling: Motion is unopposed. Motion is GRANTED. Requests for Admission propounded on 03/27/2026 are deemed admitted. Court to sign the proposed order.

4.

CASE #	CASE NAME	HEARING NAME
CVME2517635	WELLS FARGO BANK, N.A. VS MCCREIGHT, AN INDIVIDUAL	MOTION FOR ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS ADMITTED

Tentative Ruling: Motion is unopposed. Motion is GRANTED. Requests for Admission propounded on 05/13/2026 are deemed admitted. Court to sign the proposed order.